

Draft Statement of Work

Title of Project: Health Views Survey

1. Background

The Department of Veterans Affairs (VA), with support from the National Center for PTSD, will conduct the Health ViEWS Follow-Up Survey of the Vietnam Women's Health Study. This cohort represents the most complete enumeration of women who served in the Vietnam theater and comparison groups who served in the U.S. or other locations. The project will be led by Principal Investigator **Rachel Kimerling, Ph.D.**, with **Gisselle Tamayo** serving as Project Manager. As the first generation of women Vietnam-era Veterans reaches late life, their numbers and care needs are increasing, yet little is known about their long-term health, disability, service utilization, and aging-in-place needs.

This follow-up project will use a life-course epidemiology framework to examine how warzone service and PTSD onset and duration contribute to cumulative physiological burden and long-term health trajectories. The study will assess late-life health, functional status, disability, long-term care needs (formal, informal, and institutional), and the use of VA and non-VA services, including the influence of chemical exposures. Findings will inform VA planning and implementation related to the PACT Act and the Elizabeth Dole Home Care Act by supporting effective, timely services that promote aging in place for older Veterans.

A secondary objective is to archive the Health ViEWS dataset as a durable VA research resource to support future investigations of PTSD among older adults, which is critical to the mission of the National Center for PTSD. This will enable comparisons with male Vietnam Veteran registries and facilitate integrated analyses of long-term outcomes across cohorts.

2. Scope

2.1 Required Experience and Qualifications

2.1.1 Experience with Veteran Populations

The vendor must have demonstrable prior experience conducting large-scale (4000+ completed responses) survey research with the Veteran population, including:

- a) Large national or regional surveys of Veterans aged 55 and older, and
- b) Large surveys specifically involving women Veterans.
- c) Experience recruiting and surveying Vietnam-era Veterans is strongly preferred

2.1.2 Tracing and Identity Resolution Capability

The vendor must demonstrate the capability to locate and trace participants using non-public databases and commercial tracing resources (e.g. Experian, Lexis-Nexis) via industry-standard methods to obtain updated addresses, telephone numbers, and other contact information.

2.1.3 Authority to Operate (ATO)

The vendor must possess an active Authority to Operate (ATO) with the Department of Veterans Affairs at the time of contract award or must demonstrate the ability to obtain one before receiving VA data. All systems used to store, transmit, or process VA data must meet VA information security, privacy, and FISMA requirements.

2.1.4 Internal Institutional Review Board (IRB)

The vendor must maintain its own internal Institutional Review Board (IRB) capable of reviewing human subjects research to ensure compliance with ethical, regulatory, and VA-specific requirements.

2.1.5 Mental Health Safety and Warm-Handoff Capability

Vendor must have established procedures for identifying and responding to distressed respondents during survey administration. The vendor must have the capability to conduct a warm handoff to the Veterans Crisis Line (VCL) during a telephone interview, consistent with VA standards for handling mental health risk, as reflected in prior VA survey contracts.

2.1.6 Telephone Survey and CATI Capability

The vendor must have the ability to conduct telephone follow-up interviews using a secure Computer-Assisted Telephone Interviewing (CATI) platform. The CATI system must:

- Meet or exceed VA and industry standards for security and data protection.
- Allow programming of skip logic, interviewer prompts, and integrated quality checks.
- Generate standard survey operations outputs including disposition reports, toplines, and exportable data files.

These expectations align with prior VA contracting requirements for secure CATI systems.

2.1.7 Data Security and Technical Infrastructure

The vendor must demonstrate the capability to handle, store, and transmit VA data securely, including:

- Secure file transfer (e.g., SFTP) for receiving and sending sensitive data
- Compliance with VA Handbook 6500, VA privacy standards, and relevant FISMA provisions

- Secure servers meeting VA requirements for storage of personally identifiable information (PII) and protected health information (PHI)

2.1.8 All work must be performed by the Contractor. The Contractor may not use any subcontractor to perform any of the Contractors tasks or obligations.

2.2 Vendor Tasks

Task 1: Project Management and Communication

1.1 Project Oversight and Personnel

The Contractor shall designate a qualified Project Manager who will serve as the primary point of contact (POC) for the VA study team. The Project Manager will oversee all project activities and ensure appropriate staffing, supervision, and adherence to VA privacy, information security, and human subjects protections requirements.

1.2 Initial Virtual Meeting

Within one month of contract award, the Contractor shall participate in a virtual initial meeting with the VA study team. The Contractor shall provide a brief agenda, including the proposed project schedule and key activities, at least three business days prior to the meeting (agenda does not need detailed milestones).

1.3 Project Plan

Within 30 days of contract award, the Contractor shall develop and submit a Project Plan outlining:

- Planned workflow for sample processing, survey administration, and data management
- Contact procedures for survey help line and opt-out processing
- Staff roles
- Quality assurance processes

The Project Plan shall be updated only if procedures materially change and must be approved by the VA before implementation.

1.4 Communication and Reporting

The Contractor shall:

- Provide biweekly response-rate reports via email during active data collection.
- Provide issue-based email updates as needed (e.g., delays, tracing problems, mail delivery problems, CATI issues, or security concerns).
- Respond to VA inquiries within 2 business days.

1.5 Documentation and Tracking

The Contractor shall maintain internal tracking of all project activities, including survey

mailings, opt-outs, survey returns, tracing outcomes, and CATI attempts. Tracking information shall be provided to the VA upon request.

Deliverables for Task 1

Deliverable 1.1: Designation of Project Manager and project contact list

Deliverable 1.2: Virtual initial meeting and agenda (within 1 month)

Deliverable 1.3: Project Plan (within 30 days)

Deliverable 1.4: Biweekly response-rate reports

Deliverable 1.5: Issue-based email updates as needed

Task 2: Sample Processing, Address Verification, and Batch Tracing

2.1 Receipt of Sample File

The VA will provide the Contractor with the initial sample file after VA has completed National Death Index (NDI) processing to identify deceased individuals and determine sample eligibility. The Contractor shall review the file for completeness and confirm secure receipt in accordance with VA data security requirements.

2.2 Batch Tracing Using Third-Party Identity Services

The Contractor shall submit the entire sample to an approved third-party identity service (e.g., Experian/TrueTrace or equivalent) for batch tracing to obtain updated mailing address and telephone number information. The Contractor shall securely merge updated locator data into the sample file and document all changes.

2.3 Address Standardization and Verification (CASS/NCOA)

Before initiating any mailings, the Contractor shall complete:

- CASS certification to standardize address formats, and
- National Change of Address (NCOA) processing to ensure that all mailing addresses are current, valid, and deliverable at the time of the first survey packet mailing.

2.4 Creation of Final Mailing Sample

The Contractor shall produce a final, deliverable mailing sample based on tracing and CASS/NCOA results. The sample shall include:

- Current address and phone number (if available)
- Eligibility status (post-NDI)
- Unique study identifier
- Flags for cases requiring manual review (e.g., conflicting address updates or incomplete records)

2.5 Tracking Undeliverable Mail and Address Corrections

The Contractor shall log all undeliverable mail returned by the U.S. Postal Service and shall incorporate updated addresses when available. In accordance with your Contractor Tasks document, the Contractor shall re-mail up to 2% of mailings returned as undeliverable when a new address is identified.

2.6 Secure Handling and Storage of Sample Data

Throughout sample processing, the Contractor shall maintain the sample file on secure systems consistent with VA privacy and information security requirements. All updates to the sample must be auditable and retrievable.

Deliverables for Task 2

Deliverable 2.1: Confirmation of secure sample receipt

Deliverable 2.2: Notification to VA of the number and percentage of sample cases that could not be located through batch tracing.

Deliverable 2.3: Log of undeliverable mail and re-mailing actions (provided only after mail survey operations begin)

Task 3: Mail Survey Administration

3.1 Printing, Assembly, and Packaging of Survey Materials

The VA will provide the Contractor with all final survey materials, including the paper survey instrument, cover letters, FAQs, brochures, and any required enclosures. The Contractor shall be responsible for approving, printing, assembling, and packaging required materials for each mailing.

3.2 Mailing Sequence and Requirements

The Contractor shall implement the required four-part mailing sequence to all eligible sample members:

3.2.1 Mailing 1: Initial Survey Packet

Includes:

- Paper Survey #1
- Cover letter with FAQ on reverse
- Pre-incentive cash (provided per VA instruction)
- Postage-paid opt-out postcard
- Color tri-fold brochure
- Postage-paid return envelope

3.2.2 Mailing 2: Reminder Postcard

A reminder postcard will be mailed to non-responders.

(Note: Your Contractor Tasks file flags an internal question about 1 vs. 2 postcards. Per your direction, we will maintain one reminder postcard unless you instruct otherwise.)

3.2.3 Mailing 3: Second Survey Packet (to Nonrespondents)

Includes:

- Paper Survey #2
- Cover letter with FAQ
- Postage-paid return envelope

3.2.4 Mailing 4: Thank-You/Final Incentive Letter

Includes post-incentive cash in the amount of \$75.00 for respondents.

3.3 Opt-Out Processing and Help Line

The Contractor shall maintain a toll-free survey help line to:

- Respond to participant inquiries
- Record participant opt-out requests
- Support requests for additional information
- Allow participants to request discontinuation of contact

The Contractor shall provide an optional email address for participant communication.

All opt-outs must be logged and removed promptly from the mailing list.

3.4 Management of Undeliverable Mail and Re-Mailing (Up to 2%)

The Contractor shall track all undeliverable mail and shall re-mail up to 2% of packets returned as undeliverable where a new address becomes available, consistent with the Contractor Tasks document.

3.5 Response-Rate Monitoring

During active data collection, the Contractor shall provide biweekly overall response-rate reports via email, including counts of completed surveys, refusals, opt-outs, and outstanding cases.

3.6 Sample and Expected Volume

The Contractor shall manage mailing operations for the expected post-NDI eligible sample size of approximately 3,164 Veterans, with post-incentive cash budget expectations allowing for up to 2,010 completed surveys, as specified in Section 3.2.4. If more than 2,010 completed services are returned, the contractor will provide proof of the number of completed surveys to the Contract Officer Representative (COR). The COR will request a contract modification to add additional funds to pay the additional post-incentive cash allowance.

Task 4: Telephone (CATI) Survey

4.1 CATI Survey Administration to Mail Nonresponders

The Contractor shall conduct Computer-Assisted Telephone Interviewing (CATI) with all mail survey nonresponders. CATI interviews shall begin only after the mail survey field period has progressed sufficiently to identify nonresponders. The CATI interview shall require approximately 20 minutes to complete.

4.2 VA-Provided CATI Instrument

The VA will provide the final telephone-appropriate version of the survey instrument, including interviewer scripts and prompts. The Contractor shall review, program and test the instrument within its CATI system prior to initiating calls.

4.3 Call Attempts and Dispositions

The Contractor shall make up to three call attempts per case, as specified, and shall record call outcomes using standard disposition codes.

4.4 Warm Handoff Capability

During CATI interviews, the Contractor shall perform a warm handoff (as indicated in IRB-approved protocol) to the Veterans Crisis Line if a respondent exhibits distress or crisis.

4.5 Harmonization of CATI and Mail Survey Data

The Contractor shall harmonize CATI interview data with completed mail survey data to produce a single integrated dataset with consistent coding and variable structure.

Deliverables for Task 4

Deliverable 4.1: Inclusion of CATI dispositions and completes in the biweekly response-rate reports.

Task 5: Data Capture, Processing, and Quality Control

5.1 Data Capture for Paper Surveys

The Contractor shall capture paper survey data using a method approved by VA—either optical scanning/OMR of the 12-page scannable instrument, double data entry, or a hybrid approach. The method shall preserve unique study identifiers and maintain an audit trail of edits and corrections.

5.2 Data Processing

The Contractor shall process all survey data in preparation for dataset construction.

5.3 Coding Standards and Metadata

The Contractor shall apply variable names, value labels, and missing-value codes consistently across the dataset, produce a record layout, and generate a codebook/data

dictionary that documents question text, response options, routing/skip logic, and any derived variables.

5.4 Data Cleaning and Quality Control

The Contractor shall implement quality checks including range checks, logic checks, consistency checks across related items, detection of outliers, and reconciliation rules for duplicate or conflicting responses across modes.

For manual entry, the Contractor shall perform 100% verification (double-entry). For scanned data, the Contractor shall perform visual edits to ensure scannable responses yield valid values.

5.5 Preparation of Final Dataset and Documentation

The Contractor shall prepare the final cleaned dataset and associated documentation. This includes completing all data processing required to produce the final dataset, preparing the accompanying codebook and labels/formats, and ensuring that the final outputs are ready for delivery to VA.

Task 6: Final Data Delivery and Destruction

6.1 Final Data Package

The Contractor shall deliver a complete final data package to VA, including:

- A final cleaned dataset in Stata (dta) format.
- A codebook/data dictionary documenting variable names, labels, value sets, skip logic, derived variables, and record layout.
- A survey methods report describing field operations, mail and CATI dispositions, tracing procedures, response metrics, data capture procedures, and quality-control processes.
- A disposition file containing case-level outcomes for all cases in the sampling frame, keyed by study ID, to support reconciliation with reported response metrics.
- A link file containing study ID associated with participant name, address, phone number, and other identifying information authorized by the VA for matching purposes.

6.2 Transfer Method and Security

All deliverables shall be transferred to VA via SFTP or another VA-approved secure mechanism using TLS/HTTPS encryption, consistent with VA security and privacy requirements.

6.3 Acceptance

The Principal Investigator (PI) will review and formally accept the final data package when:

- The dataset meets agreed-upon format and quality expectations;
- The codebook fully documents all delivered variables.
- The methods report accurately reflects survey fieldwork.
- The disposition file reconciles with reported response metrics;
- The link file matches the final sample records.

6.4 Data Destruction Certification

After VA confirms acceptance of the final deliverables, the Contractor shall destroy all VA data in accordance with VA privacy and information security requirements and provide a written certification of data destruction.

If the Contractor maintains enterprise backup systems, any retention or destruction procedures must be explicitly approved by VA and must comply with applicable VA policies.

Deliverables for Task 6

Deliverable 6.1 — Final Cleaned Dataset

A complete final cleaned dataset in Stata (.dta) format.

Deliverable 6.2 — Codebook / Data Dictionary

A complete codebook documenting variable names, labels, formats, skip patterns, and derived variables.

Deliverable 6.3 — Survey Methods Report

A written report summarizing field operations, response outcomes, tracing procedures, and data processing steps, and data verification procedures.

Deliverable 6.4 — Disposition File

A file containing case-level outcomes for all sampled cases, keyed by study ID.

Deliverable 6.5 — Link File

A separate file mapping each study ID to name, mailing address, and phone number, as authorized by VA.

Deliverable 6.6 — Secure Transfer of Final Deliverables

Electronic delivery of all final materials to VA using SFTP or another VA-approved secure mechanism.

Deliverable 6.7 — Data Destruction Certification

Written certification that all VA data have been destroyed in accordance with VA security and privacy requirements.

Schedule of Deliverables

Deliverable #	Description	Triggering Milestone	Deadline (within __ days)
1.1	Project Manager & Contact List	Contract Award	30 days
1.2	Initial Meeting Agenda & Meeting Held	Contract Award	30 days
1.3	Project Plan	Initial Meeting Held	30 days
1.4	Biweekly Response-Rate Reports	Beginning of Data Collection	Biweekly, until data collection complete
2.1	Secure Sample Receipt Confirmation	Receipt of Sample File	2 business days
2.2	Batch Tracing Summary	Completion of Tracing	5 business days
2.3	Undeliverable Mail Log	Mail Fielding Active	As part of biweekly reports
4.1	CATI Disposition Metrics in Reports	CATI Fielding Active	As part of biweekly reports
6.1	Final Cleaned Dataset	End of All Data Collection	TBD
6.2	Final Codebook	End of All Data Collection	TBD
6.3	Final Methods Report	End of All Data Collection	TBD
6.4	Disposition File	End of All Data Collection	TBD
6.5	Link File	End of All Data Collection	TBD
6.6	Secure Transfer Confirmation	Final Data Package Delivery	1 day
6.7	Data Destruction Certification	PI Acceptance of Final Package	TBD

7.0 Option Year

7.1 If funds are available, performance is satisfactory, and there is a research need, an option year may be exercised for a period of up to 1 year.

7.1.1 During the option year, the contractor will provide statistical support to generate survey weights for the Health ViEWS study. The statistician will develop and apply appropriate weighting procedures to account for the sampling design, differential

probabilities of selection, and nonresponse. Tasks include reviewing the final sample, preparing weighting variables, calculating base and adjusted weights, conducting diagnostics to assess weighting performance, and amending the methods report to document all methods and outcomes. These weights will ensure that survey estimates are representative of the target Veteran population and suitable for analysis.

8 Period of Performance

8.1 Period of Performance: September 1, 2026 through August 31, 2027 (12 months).

8.2 Hours of Coverage: Monday-Friday 8am – 4:30pm all times zones within the continental US

3.3 Location of Performance: All work shall be performed ☒ Remotely ☐ On-site
All work will take place remotely from vendor's place of business as this work does not involve any in-person interaction with patients or study participants.

9 **Risk Assessment:** Will contractors have or need access to patient information? ☒ Yes
☐ No

If yes, Explain what they will need access to and justification:

The contractor will be given the names and identifying information (e.g. ssn, address) of the sample necessary to perform tracing and identity resolution in order to locate participants, send mailings and administer a telephone survey.

10 Quality Assurance

10.1 Vendor will monitor the survey progress and quality. If any issues, impediments, or errors occur, the VA must be notified immediately. Any security violations or attempted violations shall be reported to the VA Project Manager and the VHA Headquarters Information Security Officer as soon as possible. The Vendor shall follow all applicable VA policies and procedures governing information security, especially those that pertain to certification accreditation.

10.2 Data files will be transferred between the Vendor's secure server to the study team's restricted access folder on the VA server via secure FTP. Only the VA study team will be uploading and downloading data, the Vendor will not be able to access the VA server.

10.3 Vendor will ensure all VA sensitive data files will be destroyed after the end of the project once all the data files have been provided to the VA and verified and validated.

11 Mandatory Tasks and Deliverables

The Contractor shall deliver a complete final data package to VA, including:

- 11.1 A final cleaned dataset in Stata (.dta) format.
- 11.2 A codebook/data dictionary documenting variable names, labels, value sets, skip logic, derived variables, and record layout.
- 11.3 A survey methods report describing field operations, mail and CATI dispositions, tracing procedures, response metrics, data capture procedures, and quality-control processes.
- 11.4 A disposition file containing case-level outcomes for all cases in the sampling frame, keyed by study ID, to support reconciliation with reported response metrics.
- 11.5 A link file containing study ID associated with participant name, address, phone number, and other identifying information authorized by the VA for matching purposes.

12 **Travel.** ☐ Required ☒ Not Required, The NC-PTSD does not anticipate any travel.

13 Reporting Requirements

8.1 The Contractor shall provide to the contracting officer representative (COR) and the Project Manager with monthly Progress Reports in electronic form in Microsoft Word.

8.1.1 The Monthly Progress Reports shall describe all work completed during the reporting period and work planned for the subsequent reporting period. The report shall also identify any problems that arose and a description of how the problems were resolved.

8.1.2 The Contractor shall monitor performance against the PMP and report any deviations.

8.1.3 The Contractor shall communicate with VA accordingly so that issues that arise are transparent to both parties to prevent escalation of outstanding issues.

APPENDIX C

1. GENERAL. This entire section applies to all acquisitions requiring any Information Security and Privacy language. Contractors, contractor personnel, subcontractors and subcontractor personnel will be subject to the same federal laws, regulations, standards, VA directives and handbooks, as VA personnel regarding information and information system security and privacy.

2. VA INFORMATION CUSTODIAL LANGUAGE. This entire section applies to all acquisitions requiring any Information Security and Privacy language.

a. The Government shall receive unlimited rights to data/intellectual property first produced and delivered in the performance of this contract or order (hereinafter “contract”) unless

expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is FAR 52.227-14 *Rights in Data – General*. The primary clause used to define computer software license (not data/intellectual property first produced under this contractor or order) is FAR 52.227-19, *Commercial Computer Software License*.

b. Information made available to the contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the service agreement, SOW, PWS, PD, and/or contract. The contractor shall not use VA information in any other manner without prior written approval from a VA Contracting Officer (CO). The primary clause used to define Government and Contractor data rights is FAR 52.227-14 *Rights in Data – General*.

c. VA information will not be co-mingled with any other data on the contractor's information systems or media storage systems. The contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization.

d. VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of contractor Information Technology (IT) resources to ensure information security is compliant with Federal and VA requirements. The contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to contractor and subcontractor staff associated with the contract) to VA, VA's Office Inspector General (OIG), and/or Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.

e. The contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal information security laws, regulations or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and/or policies.

f. The contractor shall not make copies of VA information except as specifically authorized and necessary to perform the terms of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program and VA Information Security Knowledge Service.

g. If a Veterans Health Administration (VHA) contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. If there is an executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.

h. The contractor shall store and transmit VA sensitive information in an encrypted form, using VA-approved encryption tools which are, at a minimum, Federal Information Processing Standards (FIPS) 140-2, Security Requirements for Cryptographic Modules (or its successor) validated and in conformance with VA Information Security Knowledge Service requirements. The contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in

conformance with National Institute of Standards and Technology (NIST) 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations.

i. The contractor's firewall and web services security controls, as applicable, shall meet or exceed VA's minimum requirements.

j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after notification to VA CO (ii) with written approval from the VA CO. The contractor shall refer all requests for, demands for production of or inquiries about, VA information and information systems to the VA CO for response.

k. Notwithstanding the provision above, the contractor shall not release VA records protected by Title 38 U.S.C. § 5705, Confidentiality of medical quality-assurance records and/or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the contractor is in receipt of a court order or other requests for the above-mentioned information, the contractor shall immediately refer such court order or other requests to the VA CO for response.

l. Information made available to the contractor by VA for the performance or administration of this contract or information developed by the contractor in performance or administration of the contract will be protected and secured in accordance with VA Directive 6500 and Identity and Access Management (IAM) Security processes specified in the VA Information Security Knowledge Service.

m. Any data destruction done on behalf of VA by a contractor shall be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.

n. The contractor shall provide its plan for destruction of all VA data in its possession according to VA Directive 6500 and NIST 800-88, *Guidelines for Media Sanitization* prior to termination or completion of this contract. If directed by the COR/CO, the contractor shall return all Federal Records to VA for disposition.

o. Any media, such as paper, magnetic tape, magnetic disks, solid state devices or optical discs that is used to store, process, or access VA information that cannot be destroyed shall be returned to VA. The contractor shall hold the appropriate material until otherwise directed by the Contracting Officer's Representative (COR) or CO. Items shall be returned securely via VA-approved methods. VA sensitive information must be transmitted utilizing VA-approved encryption tools which are validated under FIPS 140-2 (or its successor) and NIST 800-52. If mailed, the contractor shall send via a trackable method (USPS, UPS, FedEx, etc.) and immediately provide the COR/CO with the tracking information. Self-certification by the contractor that the data destruction requirements above have been met shall be sent to the COR/CO within 30 business days of termination of the contract.

p. All electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) used to store, process or access VA information will not be returned to the contractor at the end of

lease, loan, or trade-in. Exceptions to this paragraph will only be granted with the written approval of the VA CO.

3. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS. This section applies when any person requires access to information made available to the contractor by VA for the performance or administration of this contract or information developed by the contractor in performance or administration of the contract.

a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees and subcontractors only to the extent necessary to perform the services specified in the solicitation or contract. This includes indirect entities, both affiliate of contractor/subcontractor and agent of contractor/subcontractor.

b. Contractors and subcontractors shall sign the VA Information Security Rule of Behavior (ROB) before access is provided to VA information and information systems (see Section 4, Training, below). The ROB contains the minimum user compliance requirements and does not supersede any policies of VA facilities or other agency components which provide higher levels of protection to VA's information or information systems. Users who require privileged access shall complete the VA elevated privilege access request processes before privileged access is granted.

c. All contractors and subcontractors working with VA information are subject to the same security investigative and clearance requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors shall be in accordance with VA Directive and Handbook 0710, *Personnel Suitability and Security Program*. The Office of Human Resources and Administration/Operations, Security and Preparedness (HRA/OSP) is responsible for these policies and procedures. Contract personnel who require access to classified information or information systems shall have an appropriate security clearance. Verification of a Security Clearance shall be processed through the Special Security Officer located in HRA/OSP. Contractors shall conform to all requirements stated in the National Industrial Security Program Operating Manual (NISPOM).

d. All contractors and subcontractors shall comply with conditions specified in VAAR 852.204-71(d); Contractor operations required to be in United States. All contractors and subcontractors working with VA information must be permanently located within a jurisdiction subject to the law of the United States or its Territories to the maximum extent feasible. If services are proposed to be performed abroad the contractor must state where all non-U.S. services are provided. The contractor shall deliver to VA a detailed plan specifically addressing communications, personnel control, data protection and potential legal issues. The plan shall be approved by the COR/CO in writing prior to access being granted.

e. The contractor shall notify the COR/CO in writing immediately (no later than 24 hours) after personnel separation or occurrence of other causes. Causes may include the following:

- (1) Contractor/subcontractor personnel no longer has a need for access to VA information or VA information systems.

(2) Contractor/subcontractor personnel are terminated, suspended, or otherwise has their work on a VA project discontinued for any reason.

(3) Contractor believes their own personnel or subcontractor personnel may pose a threat to their company's working environment or to any company-owned property. This includes contractor-owned assets, buildings, confidential data, customers, employees, networks, systems, trade secrets and/or VA data.

(4) Any previously undisclosed changes to contractor/subcontractor background history are brought to light, including but not limited to changes to background investigation or employee record.

(5) Contractor/subcontractor personnel have their authorization to work in the United States revoked.

(6) Agreement by which contractor provides products and services to VA has either been fulfilled or terminated, such that VA can cut off electronic and/or physical access for contractor personnel.

f. In such cases of contract fulfillment, termination, or other causes; the contractor shall take the necessary measures to immediately revoke access to VA network, property, information, and information systems (logical and physical) by contractor/subcontractor personnel. These measures include (but are not limited to): removing and then securing Personal Identity Verification (PIV) badges and PIV – Interoperable (PIV-I) access badges, VA-issued photo badges, credentials for VA facilities and devices, VA-issued laptops, and authentication tokens. Contractors shall notify the appropriate VA COR/CO immediately to initiate access removal.

g. Contractors/subcontractors who no longer require VA accesses will return VA-issued property to VA. This property includes (but is not limited to): documents, electronic equipment, keys, and parking passes. PIV and PIV-I access badges shall be returned to the nearest VA PIV Badge Issuance Office. Once they have had access to VA information, information systems, networks and VA property in their possessions removed, contractors shall notify the appropriate VA COR/CO.

4. TRAINING. This entire section applies to all acquisitions which include section 3.

a. All contractors and subcontractors requiring access to VA information and VA information systems shall successfully complete the following before being granted access to VA information and its systems:

(1) VA Privacy and Information Security Awareness and Rules of Behavior course (Talent Management System (TMS) #10176) initially and annually thereafter.

(2) Sign and acknowledge (electronically through TMS #10176) understanding of and responsibilities for compliance with the Organizational Rules of Behavior, relating to access to VA information and information systems initially and annually thereafter; and

(3) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system or information access [to be defined by the VA program official and provided to the VA CO for inclusion in the solicitation document – i.e., any role-based information security training].

b. The contractor shall provide to the COR/CO a copy of the training certificates and certification of signing the Organizational Rules of Behavior for each applicable employee within five days of the initiation of the contract and annually thereafter, as required.

c. Failure to complete the mandatory annual training is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the required training is complete.

5. SECURITY INCIDENT INVESTIGATION. This entire section applies to all acquisitions requiring any Information Security and Privacy language.

a. The contractor, subcontractor, their employees, or business associates shall immediately (within one hour) report suspected security / privacy incidents to the VA OIT's Enterprise Service Desk (ESD) by calling (855) 673-4357 (TTY: 711). The ESD is OIT's 24/7/365 single point of contact for IT-related issues. After reporting to the ESD, the contractor, subcontractor, their employees, or business associates shall, within one hour, provide the COR/CO the incident number received from the ESD.

b. To the extent known by the contractor/subcontractor, the contractor/ subcontractor's notice to VA shall identify the information involved and the circumstances surrounding the incident, including the following:

- (1) The date and time (or approximation of) the Security Incident occurred.
- (2) The names of individuals involved (when applicable).
- (3) The physical and logical (if applicable) location of the incident.
- (4) Why the Security Incident took place (i.e., catalyst for the failure).
- (5) The amount of data belonging to VA believed to have been compromised.
- (6) The remediation measures the contractor is taking to ensure no future incidents of a similar nature.

c. After the contractor has provided the initial detailed incident summary to VA, they will continue to provide written updates on any new and relevant circumstances or facts they discover. The contractor, subcontractor, and their employees shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.

d. VA IT contractors shall follow VA Handbook 6500, Risk Management Framework for VA Information Systems VA Information Security Program, and VA Information Security Knowledge Service guidance for implementing an Incident Response Plan or integrating with an existing VA implementation.

e. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG, and the VA Office of Security and Law Enforcement. The

contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

- f. The contractor shall comply with VA Handbook 6500.2, *Management of Breaches Involving Sensitive Personal Information*, which establishes the breach management policies and assigns responsibilities for the oversight, management and reporting procedures associated with managing of breaches.
- g. With respect to unsecured Protected Health Information (PHI), the contractor is deemed to have discovered a data breach when the contractor knew or should have known of breach of such information. When a business associate is part of VHA contract, notification to the covered entity (VHA) shall be made in accordance with the executed BAA.
- h. If the contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach involving any VA sensitive personal information the contractor/subcontractor processes or maintains under the contract; the contractor shall pay liquidated damages to the VA as set forth in clause 852.211-76, Liquidated Damages—Reimbursement for Data Breach Costs.

Based upon a review of the PWS/SOW and Appendix A as presented, the contractor will have access to VA sensitive information to fulfill the terms of the contract. That sensitive information will include PII/PHI, however, this falls under research therefore, a BAA will not be required. Please contact the Privacy Officer at V21PALPrivacyoffice@va.gov for any questions.